

-- the Commissioner has an adequate connection to enforcing or threatening to enforce the Act because “the statute is replete with examples of things the commissioner does in support of enforcement of this law;” and

-- the Attorney General “actually has enforcement ability;” he “has taken the least action but has the strongest connection with the enforcement of this statute.”

In this First Amendment case, the court further observed, “there is something unique about public threats to enforce this law” that creates extra concern for chilling protected speech. *Minnesota Chapter of Associated Builders and Contractors v. Timothy James Walz et al.*, File No. 24-cv-536, RDoc 62, Motion Hearing Tr. 35-44 (D. Minn. Sept. 20, 2024).

In my view, the limited record on defendants’ motion to dismiss fully supports the district court’s analysis and conclusions. Whether the standard of review is *de novo* or abuse of discretion, I would affirm the denial of defendants’ motion to dismiss based on state sovereign immunity for the reasons stated by the district court. Accordingly, I respectfully dissent.

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